



New Towns (Amendment) Act 1976

1976 CHAPTER 68

An Act to provide for the transfer to district councils of the interest of the Commission for the New Towns and development corporations in dwellings and of any associated property, rights, liabilities and obligations; to increase the maximum number of members of development corporations; and for connected purposes.

[15th November 1976]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Transfer and management of housing

1.—(1) A scheme may be made in accordance with and subject to the provisions of this Act providing for the transfer from a new town corporation of their interest in any dwellings of a new town and any of their associated property, rights, liabilities and obligations to the council of the district in which the dwellings are situated or any adjoining district.

Transfer of housing and associated property, etc., to district councils.

(2) In this Act, except where the context otherwise requires,—

“transfer scheme” means a scheme under this section;

“transferred dwellings” and “transferred land” mean respectively dwellings and land an interest in which is transferred or proposed to be transferred by any transfer scheme;

“transferred”, in relation to other property or any rights, liabilities or obligations, means transferred or proposed to be transferred by any transfer scheme;

and cognate expressions shall be construed accordingly.

(3) The following property, rights, liabilities and obligations of a new town corporation shall be treated for the purposes of this Act as associated with any transferred dwellings in which they have or had an interest, that is to say—

- (a) any interest of the corporation in any land occupied or set aside for occupation or use with a transferred dwelling ;
- (b) any interest of the corporation in land in the vicinity of transferred dwellings which is held by them for the benefit or use of the occupiers or other inhabitants of those dwellings (rather than the inhabitants of the new town as a whole) or for providing facilities for the inhabitants of those dwellings, and any other property and any rights of the corporation so held ;
- (c) any property and rights held by the corporation for the administration of an estate comprising any transferred dwellings or other transferred land or the maintenance or service of any transferred dwellings or other transferred land, or otherwise in connection with any transferred property ;
- (d) any rights, liabilities and obligations which the corporation have in connection with any transferred dwellings or other transferred property or rights or in connection with any dwellings of the new town in which the corporation have disposed of their interest ;
- (e) any interest of the corporation in land awaiting development as part of an estate comprising any transferred dwellings or other transferred land and set aside by the corporation for the erection of dwellings or for the erection of any other buildings for any purpose mentioned in paragraph (b) or (c) above ;
- (f) any interest of the corporation in land set aside by them as an open space for the use or enjoyment of the occupiers or other inhabitants of any transferred dwellings ;
- (g) any property, rights, liabilities or obligations of the corporation prescribed by the Secretary of State by order as being of a description which it is appropriate in his opinion to transfer with any property, rights, liabilities or obligations mentioned in any of the foregoing paragraphs.

(4) Any order under this section may be varied or revoked by a subsequent order thereunder.

(5) The power conferred by this section to make any order shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

2.—(1) Where one of the conditions mentioned in subsection (2) below is satisfied with respect to a new town, the Secretary of State may give directions to the new town corporation for the town and to the council of any district within which any part of the area of the new town is situated requiring them to enter into consultations with him, with each other and with the council of any other district within which any part of the area of the new town or any dwellings of the new town or any associated property is or are situated, with a view to a transfer scheme being made in respect of the new town by the new town corporation and the council to whom the directions are given.

Consultations with a view to transfer schemes.

(2) The said conditions are:—

- (a) an order has been made before the commencement of this Act with respect to the new town under section 41 of the 1965 Act (transfer of development corporation's property to the Commission) transferring the property of its development corporation to the Commission for the New Towns ;
- (b) the site of the new town was first designated not less than 15 years before the date of the directions under this section ;
- (c) the Secretary of State has, after consulting the new town corporation for the town concerned, formed the opinion that the development of the new town has been substantially completed or that the carrying out of a transfer scheme would not be detrimental to the laying out of the new town or the completion of its development.

(3) Where the site of a new town was first designated not less than 15 years before a request under this subsection, but no directions have been given with respect to the new town under this section, the new town corporation or the council of any district within which any part of the area of the town is situated may request the other and the Secretary of State to enter into consultations with a view to a transfer scheme being made in respect of the new town by the corporation and the council ; and the corporation and the council and the Secretary of State shall enter into such consultations with each other and with the council of any other district within which any part of the area of the new town or any dwellings of the new town or any associated property is or are situated.

3.—(1) If after any consultations under section 2 above with respect to a new town it appears to the Secretary of State that it is expedient for the new town corporation and a district council to whom directions have been given or by or to whom a request has been made under that section to make a transfer

Preparation and contents of transfer schemes.

scheme, he may, subject to the following provisions of this Act, give directions to the corporation and the council to make and submit to him within a specified time a transfer scheme, or, where one has already been made, a further transfer scheme, with respect to the new town, providing for the transfer to the council of the corporation's interest in all or any of the dwellings of the new town and of any of the corporation's associated property, rights, liabilities and obligations.

(2) In determining what land should, or should not, be transferred by a transfer scheme the Secretary of State and the parties making the scheme shall have regard to the need for facilitating proper estate management, after the vesting of the transferred land, both of that land and of any other land in its vicinity.

(3) Directions under this section shall, unless they state that in the opinion of the Secretary of State it is not appropriate for the corporation and the council concerned to enter into management arrangements with respect to any land in the new town, require the corporation and council to include in the scheme management arrangements, that is to say arrangements for the management by the council—

(a) subject to subsection (4) below, of all those dwellings within their district or any adjoining district which are not transferred, but in which the corporation have an interest for the time being, and

(b) if the parties think fit, of any other land not transferred in which the corporation have an interest for the time being and which in the interests of proper estate management it is expedient should be managed together with those dwellings.

(4) The parties may exclude any dwelling from management arrangements if in their opinion it is unlikely that the dwelling will be transferred by a subsequent transfer scheme or there are other special reasons for its exclusion.

(5) Directions under this section may—

(a) specify any dwellings of a new town, or a number or description of such dwellings, which in the opinion of the Secretary of State should be excluded from transfer on the ground that the new town corporation's interest in them should be disposed of to some person other than the district council ;

(b) in the case of directions which do not require the transfer of a new town corporation's interest in all the dwellings of the new town to a district council, specify the dwellings or description of dwellings which must be transferred ; and

- (c) require the inclusion in the transfer scheme of any description of provisions which are authorised to be so included by any enactment contained in this Act other than this subsection.

(6) A transfer scheme shall—

- (a) specify the dwellings and other property transferred, any transferred rights, liabilities and obligations and any land which is the subject of any management arrangements, describing them sufficiently to enable them to be readily identified and, in the case of land and of any rights in, under or over land which it is reasonably practicable to indicate on or by reference to a map, indicating the land itself and the rights on or by reference to a map ;
- (b) confer on the new town corporation a right to nominate tenants of dwellings of the district council (whether transferred or not and including any which is the subject of management arrangements) and specify the number or proportion of dwellings in respect of which the right is so conferred and, where it is so conferred on the Commission for the New Towns, the period for which it is to be exercisable ;
- (c) state the method for determining the payments falling to be made by the district council under section 9(2) below ; and
- (d) contain relevant information about the effect of the scheme on the existing staff of the parties concerned and state proposals for staffing arrangements immediately after the transfer scheme comes into force and the protection of existing staff.

(7) A transfer scheme may include such incidental, consequential, transitional or supplemental provision as may appear to the parties making the scheme to be necessary or proper.

4. A new town corporation and any district council to whom County directions have been given under section 3 above to make a transfer scheme shall, before submitting it to the Secretary of State under section 5 below,— County councils to be informed of proposed transfer schemes.

- (a) inform the council of each county in which there is any land proposed to be transferred by, or to be the subject of management arrangements included in, the scheme, or there is any part of the area of the new town, what that land is, and
- (b) give each such county council a reasonable opportunity of commenting on the proposed scheme.

Procedure
for making
transfer
schemes.

5.—(1) A new town corporation and any district council to whom directions have been given under section 3 above to make a transfer scheme shall, subject to subsection (2) below, endeavour within the time specified in the directions to agree with each other on the provisions to be included in the proposed scheme and to prepare it and submit it to the Secretary of State.

(2) The Secretary of State may on the application of the new town corporation or any district council to whom directions have been so given extend the time so specified.

(3) Where a proposed transfer scheme is submitted to the Secretary of State by a new town corporation and a district council in pursuance of directions under section 3 above, then,—

(a) if it appears to the Secretary of State that the scheme substantially complies with the directions, he may, with the consent of the Treasury but subject to subsection (7) below, approve the scheme, with or without modifications ; or

(b) he may in any event reject it.

(4) Where on consideration of any such scheme so submitted the Secretary of State approves the scheme without modifications or rejects it, he shall notify the corporation and council concerned of his decision.

(5) Where on consideration of any such scheme so submitted the Secretary of State proposes to approve it with modifications, he shall notify the corporation and council concerned of the modifications which he proposes to make and shall give them an opportunity to comment on the proposed modifications and send them a copy of the scheme as finally approved.

(6) Where any such scheme is not submitted to the Secretary of State within the requisite time (that is to say, the time specified in the directions under section 3 above or that time as extended under this section) or the Secretary of State rejects any such scheme submitted to him, he may himself, with the consent of the Treasury, make a transfer scheme which, subject to subsection (8) below, must be of a description which he has directed the corporation and council concerned to make, but shall first send them a draft of the scheme and give them an opportunity of commenting on the draft and shall also send them a copy of the scheme as finally made.

(7) If any management arrangements included in a proposed transfer scheme submitted to the Secretary of State in pursuance of directions under section 3 above appear to the Secretary of State to be unsatisfactory or if a proposed transfer scheme so submitted which was required by any such directions to include management arrangements fails to include them, the Secretary of State, instead of approving the scheme (where he has power to

do so) or rejecting it, may, with the consent of the Treasury, refer it back to the corporation and council concerned and give them directions under section 3 above to make and submit the scheme to him again within a specified time without any management arrangements.

(8) If no proposed transfer scheme is submitted to the Secretary of State within the requisite time or he rejects a proposed transfer scheme so submitted which was required by directions under section 3 above to include management arrangements and the ground of the rejection is that the scheme does not include any management arrangements or that any such arrangements so included appear to him to be unsatisfactory, he may exercise his power of making a transfer scheme under subsection (6) above without including any management arrangements.

6.—(1) A transfer scheme shall—

Effect of
transfer
schemes.

(a) by virtue of this provision and without more, vest in the district council concerned the interest of the new town corporation in the transferred land and any of the corporation's rights, liabilities and obligations relating to that land and shall do so on a date specified in the scheme, being 1st April in the year in question ; and

(b) so far as it relates to any other matter, come into force on that date, except so far as may be otherwise provided by the scheme.

(2) A transfer scheme approved or made by the Secretary of State shall—

(a) so far as it transfers to a district council any land of the new town corporation or any of the corporation's rights, liabilities or obligations relating to land, have effect as an instrument under seal made between the corporation and the council ;

(b) so far as it relates to any other matter, have effect as an agreement for valuable consideration made by the corporation and council concerned ;

and may be enforced accordingly, but, subject to subsection (3) below, may only be varied with the approval of the Secretary of State.

(3) The Secretary of State may, on or at any time after notifying the corporation or council concerned of his approval of a transfer scheme without modifications or, as the case may be, sending them a copy of the scheme as finally approved, give directions with the consent of the Treasury that the corporation and council may vary the scheme in a specified manner, or vary any specified provisions or any specified description of provisions of the scheme, without his approval.

(4) It is hereby declared that any power of varying a transfer scheme does not include power—

- (a) to vary it so as to affect any title to land or any rights, liabilities or obligations relating to land ; or
- (b) to include management arrangements in a scheme approved or made under section 5 above without management arrangements.

(5) Where any proposed variations of a transfer scheme are submitted to the Secretary of State for his approval under subsection (2) above, he may, with the consent of the Treasury, approve them with or without modifications or he may reject them, and shall in any event notify the corporation and council concerned of his decision.

(6) Where an interest in buildings or other land is vested by a transfer scheme in a district council or buildings are or other land is managed by such a council in pursuance of management arrangements included in such a scheme, the buildings or other land shall be treated as having been provided or, as the case may be, acquired or appropriated under Part V of the Housing Act 1957, but—

- (a) the Secretary of State may direct that any land shall not be so treated if, in his opinion, it is inappropriate to do so ; and
- (b) in relation to land so managed the council shall not have the powers conferred by sections 104 and 105 of that Act (disposal of houses so provided and land so acquired or appropriated).

(7) Where an interest in land is so vested, any installations on other land which are transferred by the scheme and are of a kind which could have been provided under Part V of the Housing Act 1957 shall, unless the Secretary of State otherwise directs, be treated as having been so provided.

(8) Without prejudice to subsection (6) above, where land is managed by a district council in pursuance of management arrangements, the council shall have all the powers, rights, liabilities and obligations of the new town corporation relating to the land, except—

- (a) the power to hold the corporation's interest in the land,
- (b) any obligation to make repayments of capital or payments of interest in respect of loans ;
- (c) where the corporation in question are a development corporation, any powers, rights, liabilities and obligations which are certified by the corporation as being appropriate for them to retain in order to enable them to complete their function of laying out and developing the new town.

(9) Where a person enters into a transaction with a district council relating to a power, right, liability or obligation certified by the corporation concerned under subsection (8)(c) above and with reasonable cause believes that the council have that power, right, liability or obligation, then—

- (a) the council shall be taken to enter into, and to be authorised by the corporation to enter into, the transaction as the corporation's agent; and
- (b) the corporation shall be entitled to be indemnified by the council for any loss suffered by the corporation as a result of their being taken, by virtue of paragraph (a) above, to be a principal in respect of any transaction.

(10) Any property of a new town corporation vested in a district council by a transfer scheme shall, if it would otherwise be so treated, not be treated as vested in the council by way of sale for the purpose of section 12 of the Finance Act 1895 ^{1895 c. 16.} (stamp duty on certain statutory transfers by way of sale).

(11) As soon as reasonably practicable after being notified that a transfer scheme has been approved or made by the Secretary of State, the corporation and council concerned shall each deposit at their respective offices and at other convenient places in the town and district respectively an extract of the scheme (including the map) which specifies the transferred land, any transferred rights, liabilities or obligations relating to that land and any land which is the subject of management arrangements, and shall keep the extract so deposited for at least six weeks and, while it is so deposited, permit any interested person to inspect and take copies of the extract, free of charge, at all reasonable hours.

7.—(1) A new town corporation's right of nominating tenants under a transfer scheme shall, subject to subsection (2) below, be such right as may be agreed between the parties to the scheme, or (in the case of a scheme made by the Secretary of State under section 5(6) above) as may be determined by him, to nominate tenants for a number or proportion of the dwellings provided (or treated by section 6(6) above as provided) by the district council concerned under Part V of the Housing Act 1957 ^{1957 c. 56.} ^{Nomination of tenants for transferred and managed dwellings.}

(2) Subject to subsection (3) below, the corporation's right of nominating tenants shall be exercisable during the following period or periods, that is to say—

- (a) where the corporation are a development corporation, a period beginning with the date on which their interest in the transferred dwellings vests in the district council

and ending with the date which is the transfer date for the purposes of Schedule 10 to the 1965 Act ;

- (b) where the corporation are the Commission for the New Towns and the dwellings in question were transferred from the development corporation to the district council, a period of 5 years beginning with the said transfer date ;
- (c) where the corporation are the Commission and the dwellings in question were transferred from them to the district council, the period of 5 years beginning with the date on which the Commission's interest in the transferred dwellings vests in the district council.

(3) The Commission and the district council concerned may, with the consent of the Secretary of State, agree to substitute a lesser period for the period of 5 years specified in paragraph (b) or, as the case may be, (c) of subsection (2) above.

Decision not to require transfer scheme.

8. If after consultations with a new town corporation and a district council under section 2 above the Secretary of State determines not to give any directions under section 3 above with respect to a new town—

- (a) he shall notify the corporation and the council of his determination and the reasons for it ;
- (b) he shall keep the development of the new town under review for the purposes of considering whether or not to give directions under section 2 above with respect to further consultations under subsection (1) of that section ; and
- (c) the corporation or the council of any district within which any part of the area of the new town is situated may at any time after three years from the notification of the original determination make a request under section 2(3) above with respect to such consultations as are mentioned in that subsection, and that subsection shall apply accordingly as it applies in a case where no directions have been given under section 2 above.

Financial arrangements.

9.—(1) The following provisions of this section shall have effect where the interest of a new town corporation in any land is vested by a transfer scheme in a district council or land in which such a corporation have an interest is managed in pursuance of management arrangements included in such a scheme.

(2) In each financial year the council shall pay the corporation a sum determined in accordance with a method specified in the scheme to be equal as nearly as practicable to the aggregate of the amounts payable by the corporation by way of repayment of

capital and payment of interest in that year in respect of the relevant portion (for the time being determined) of the corporation's total capital loan debt (so determined).

(3) For the purposes of paragraph 3(1)(a) of Schedule 1 to the Housing Finance Act 1972 (debts to Housing Revenue Account to include certain loan charges) the housing element of any sum paid in any financial year by the council under subsection (2) above shall be treated as a loan charge which they are liable to pay for that year in respect of money borrowed by them for the purpose of providing housing accommodation under Part V of the Housing Act 1957. 1972 c. 47. 1957 c. 56.

(4) For the purposes of paragraph 2(1) of Schedule 1 to the Housing Rents and Subsidies Act 1975 (new capital costs element of housing subsidy) the housing element of the relevant portion of the corporation's total capital loan debt shall be treated as capital costs incurred by the district council. 1975 c. 6.

(5) The Secretary of State—

(a) may, as respects the financial year at the beginning of which the corporation's interest in the transferred dwellings vests in the council, pay the council an increased basic element of housing subsidy under the Housing Rents and Subsidies Act 1975 or, if the council would not be entitled to the basic element for that year, treat them as entitled to it ;

(b) if after the beginning of that year a particular parcel of land is managed by the council for the first time in pursuance of management arrangements, may, as respects the next financial year falling wholly after that event, increase the basic element.

(6) Any amount paid to the council by virtue of subsection (5) above shall be such as appears to the Secretary of State to be appropriate ; and if in any financial year the council receives any amount by way of basic element or of an increase in that element by virtue of that subsection, they shall be entitled, subject to paragraph 8 of Schedule 1 to the Housing Rents and Subsidies Act 1975 (Secretary of State's power to reduce or discontinue a council's basic element), to receive that amount for each later financial year.

(7) In this section " the relevant portion of the corporation's total capital loan debt " means such portion of that debt as the Secretary of State determines—

(a) in the case of transferred buildings or other transferred land, it is reasonable to attribute to the provision of the buildings or provision or acquisition of the land and the provision of services in respect of such buildings or land ;

(b) in the case of buildings which are or other land which is managed by a district council in pursuance of management arrangements, it is reasonable to attribute to the provision of the buildings (including buildings for the time being in course of erection) or provision, acquisition or development of the land (including land for the time being in course of development) and the provision of services in respect of the buildings or land ;

and "housing element", in relation to any sum or any portion of a debt, means so much of the sum or portion as is determined by the Secretary of State to relate to anything treated by virtue of section 6(6) or (7) above as having been provided, acquired or appropriated under Part V of the Housing Act 1957.

1957 c. 56.

(8) In subsection (7) above "services" means roads, electricity, gas, water, sewerage and other services.

Grants to
district
councils.

10. Where it appears to the Secretary of State that the transfer of buildings or other land to a district council by a transfer scheme or the inclusion of any land in management arrangements imposes or will impose a financial burden on the council, he may for the purpose of relieving that burden (whether wholly or partly) make grants to the council of amounts and for a period determined by him with the consent of the Treasury ; and the council shall carry any such grants to the credit of their Housing Revenue Account.

Information
for occupiers
about
proposed
or final
schemes, etc.

11.—(1) A new town corporation shall, as soon as practicable after directions have been given to them under section 3 above to make a transfer scheme, take such steps as they consider appropriate for drawing the attention of occupiers of buildings and other land in any area which is likely to be affected by the scheme to the possibility of the scheme and the way in which the scheme is likely to affect them.

(2) As soon as practicable after a transfer scheme is approved or made by the Secretary of State the new town corporation whose land is transferred by the scheme or is the subject of management arrangements included in the scheme shall take such steps as they consider appropriate to secure that all occupiers of the land are informed of the way in which they are affected by the scheme or arrangements.

(3) As soon as practicable after a transfer scheme is approved or made by the Secretary of State any district council to whom land is transferred by the scheme or by whom any land is to be managed in pursuance of management arrangements included in the scheme shall publish in at least one local newspaper circulating in the area of the new town a notice which—

(a) states that the scheme has been approved or made and the date on which it was approved or made, and

- (b) specifies at least one place in that area where a document describing the scheme's provisions and identifying the property affected by the scheme or arrangements can be inspected.

12. In the event of a dispute between a new town corporation and a district council as to the preparation, contents or implementation of a transfer scheme or any arrangements or agreement required or authorised to be made by this Act, either of them may refer the dispute to the Secretary of State, who may determine the dispute and whose determination shall be final.

Secretary of State's power to determine disputes.

Staff

13.—(1) The Secretary of State shall make regulations containing such provisions as appear to him to be appropriate for the protection of the interests of any person who, on or after the approval or, as the case may be, making of a transfer scheme is in any employment with the new town corporation or district council concerned (the old employment) and is affected by the scheme.

Protection of employees.

(2) As regards a person who as a result of a transfer scheme is, after the scheme comes into force, in new employment, that is to say, employment (whether with another of the parties to the scheme or the same employer) which is different from his old employment, regulations under this section shall include provision—

- (a) securing that, so long as he continues in the new employment and until he is served with a statement in writing referring to the regulations and specifying new terms and conditions of employment, he enjoys terms and conditions of employment not less favourable, taken as a whole, than those which he enjoyed immediately before the termination of the old employment ;
- (b) securing that the said new terms and conditions are such that—
 - (i) so long as he is engaged in duties reasonably comparable to those in which he was engaged immediately before the termination of the old employment, the scale of his salary or remuneration, and

(ii) the other terms and conditions of his employment, are not less favourable, taken together, than those which he enjoyed immediately before the termination of the old employment.

(3) Regulations under this section may include provision for the determination of questions arising under the regulations.

1972 c. 11.

(4) The Secretary of State shall make regulations under section 24 of the Superannuation Act 1972 (compensation for loss of office, etc., for persons in local government service, etc.) with respect to all persons to whom subsection (1) above applies and who suffer loss of employment, or loss or diminution of emoluments, as a result of a transfer scheme.

1972 c. 53.

(5) For the purposes of Schedule 1 to the Contracts of Employment Act 1972 (as it applies for the purposes of computing an employee's period and continuity of employment for the purposes of sections 1 and 2 of that Act and any other enactment) in its application to a person who as a result of a transfer scheme is, after the scheme comes into force, in new employment with a different employer—

(a) the period of his employment in the old employment shall count as a period of employment in the new employment, and

(b) the change of employment shall not break the continuity of the period of employment.

1965 c. 62.

(6) For the purposes of section 13 of the Redundancy Payments Act 1965 (change of ownership of business), in its application to such a person, the transfer of any land by a transfer scheme or the inclusion in such a scheme of management arrangements for any land shall (if it would not otherwise be so treated) be treated as a change occurring in the ownership of a business.

(7) Regulations under this section shall be made by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

New Towns
Staff
Commission.

14.—(1) The Secretary of State shall, not later than one month after the passing of this Act, establish a commission to be known as the New Towns Staff Commission for the purpose of considering the general effect of transfer schemes on staff employed by new town corporations or district councils and advising him on the arrangements necessary to safeguard the interests of any such staff likely to be affected by such schemes.

(2) If the Secretary of State accepts any advice given to him by the New Towns Staff Commission under this section which he thinks should be brought to the attention of all the relevant authorities (that is to say, every new town corporation and the council of every district within which any part of the area of a new town is situated) or of one or some of those authorities, he shall notify the Commission of his acceptance and shall

direct them to take such steps as they consider appropriate to bring the advice and its acceptance to the attention of all the relevant authorities or, as the case may be, such of them as may be specified in the direction.

(3) The Secretary of State may—

- (a) give directions to the New Towns Staff Commission with respect to their procedure ;
- (b) give directions to any new town corporation or district council with respect to the furnishing of any information requested by that Commission ;
- (c) give directions to any relevant authority whose attention has been drawn to any advice under subsection (2) above requiring them to take such steps as may be specified in the directions to implement any of that advice so specified ;
- (d) pay any member of that Commission such remuneration as the Secretary of State may determine with the approval of the Minister for the Civil Service ;
- (e) defray any expenses incurred with the approval of the Secretary of State by that Commission in the performance of their functions ; and
- (f) wind up that Commission in such manner and at such time as the Secretary of State thinks fit.

(4) In Part II of Schedule 1 to the House of Commons Disqualification Act 1975 (bodies of which all members are disqualified under that Act) the following entry shall be inserted at the appropriate point in alphabetical order—

“ The New Towns Staff Commission ”.

Membership of development corporations

15. In section 2(1) of the 1965 Act (members of development corporations, other than chairman and deputy chairman, not to exceed seven) for the word “ seven ” there shall be substituted the word “ eleven ”.

Increase in maximum number of members of development corporations.

Supplementary

16. There shall be paid out of money provided by Parliament—

- (a) any grants under section 10 above ;
- (b) any payments made by the Secretary of State under section 14 above ; and
- (c) any increase which is attributable to this Act in the sums payable out of money so provided under any other Act.

Interpretation.

17.—(1) In this Act, except where the context otherwise requires, the following expressions have the following meanings respectively, that is to say—

“development corporation”, “new town” and “area of a new town” have the same meanings respectively as in the 1965 Act ;

“dwelling” means any building or part of a building occupied, or erected or adapted for occupation, as a dwelling or as a hostel (including any land belonging thereto or usually enjoyed therewith) ;

“dwelling of a new town” means any dwelling (whether or not in the area of the new town concerned) erected, adapted or acquired by the new town corporation for occupation as a dwelling ;

“management arrangements” means any arrangements made in pursuance of a requirement imposed by virtue of section 3(3) above ;

“new town corporation” means a development corporation or the Commission for the New Towns ;

1965 c. 59.

“the 1965 Act” means the New Towns Act 1965 ;

“transfer scheme” and other expressions relating to transfer have the meanings assigned to them by section 1 above.

(2) Any reference in this Act to any other enactment is a reference thereto as amended, and includes a reference thereto as extended or applied, by or under any other enactment, including this Act.

Short title,
extent and
consequential
amendment.

18.—(1) This Act may be cited as the New Towns (Amendment) Act 1976.

(2) This Act, except section 14(4), shall not extend to Scotland or Northern Ireland.

(3) On the first transfer by a transfer scheme of any interest of the Commission for the New Towns in any dwellings in a new town, paragraph 3(2) of Schedule 9 to the 1965 Act (Commission's duty to arrange for the management of their residential land by a committee) shall cease to have effect as respects that town.